PROPOSED ORDINANCE NO. 2026-02
ORDINANCE NO. 2058

AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA, SUBMITTING TO REFERENDUM AMENDMENTS TO THE CHARTER OF THE CITY OF PEMBROKE PINES AMENDING ARTICLE I ENTITLED "CREATION AND POWERS", AND IN PARTICULAR AMENDING SECTION 1.10 "DEFINITIONS" TO CHANGE MUNICIPAL GENERAL ELECTION'S DEFINITION TO THE CITY ELECTION HELD IN NOVEMBER OF EVEN NUMBERED YEARS; AMENDING ARTICLE III, ENTITLED "LEGISLATURE," AND IN PARTICULAR AMENDING SECTION 3.02 "COMMISSION MEMBERS," SECTION 3.05 "MAYOR," TO CHANGE THE ELECTION DATE IN THE CITY TO OCCUR IN NOVEMBER OF EVEN NUMBERED YEARS, AMENDING ARTICLE III, ENTITLED "LEGISLATURE", SECTION 3.06 "VICE MAYOR" TO CHANGE THE DATE FOR THE CITY'S VICE MAYOR TO BE ELECTED ANNUALLY BY THE CITY COMMISSION AT THE FIRST MEETING IN DECEMBER, PURSUANT TO CHAPTER 75-350, LAWS OF FLORIDA; AS AMENDED; PROVIDING FOR EXTENSIONS IN THE CURRENT TERMS FOR THE MAYOR AND COMMISSIONERS IN DISTRICTS 2 AND 3 TO EXTEND UNTIL THE NOVEMBER 2028 ELECTION AND FOR COMMISSIONERS IN DISTRICTS 1 AND 4 TO EXTEND UNTIL THE NOVEMBER 2030 ELECTION, PURSUANT TO SECTION 5, CHAPTER 75-350, LAWS OF FLORIDA, AS AMENDED; PROVIDING THAT THIS ORDINANCE, WHEN ADOPTED, SHALL BE SUBMITTED TO THE QUALIFIED ELECTORS OF THE CITY OF PEMBROKE PINES ON THE NOVEMBER 2026 GENERAL ELECTION BALLOT, AND IT SHALL BECOME EFFECTIVE AS PROVIDED BY LAW; PROVIDING FOR THE ADVERTISING OF THE REFERENDUM ELECTION IN ACCORDANCE WITH THE CODE OF ORDINANCES AND THE CHARTER OF THE CITY OF PEMBROKE PINES, AS WELL AS THE STATE OF FLORIDA ELECTION CODE; PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, Chapter 166, Florida Statutes, as amended, provides for a methodology of Charter amendments supplementary to and not in conflict with the Charter of the City of Pembroke Pines, Florida; and

WHEREAS, Chapter 166, Florida Statutes, as amended, provides that such an amendment may be submitted to a referendum vote by the City Commission of the City of Pembroke Pines, Florida, in an ordinance format; and

WHEREAS, the City Commission has held a public hearing in accordance with Florida law; and

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WHEREAS, Section 100.3605, Florida Statutes, as amended, provides that municipalities may change the date of their elections and provide for the orderly transition of office to accommodate changes; and

WHEREAS, by virtue of special acts governing municipal elections in Broward County (Chapter 75-350, Laws of Florida, as modified by Chapters 2004-443, 2005-318, and 2012-253, Laws of Florida (collectively, the "Special Act")), the City of Pembroke Pines and most municipalities in Broward County are required to hold general elections for the elective offices of the municipality on the second Tuesday in March; and

WHEREAS, the present City Charter provides that there shall be a general election in the City on the second Tuesday of March of even numbered years, unless changed by law; and

WHEREAS, the Special Act was amended by Chapter 2004-443, Laws of Florida, to allow municipalities in Broward County to move their elections to November, in even numbered years, provided that any change in election date will not be effective until at least 18 months after the approval of the ordinance by the municipality's governing body; and

WHEREAS, the City Commission of the City of Pembroke Pines finds that aligning municipal elections with the November general election may increase voter participation by allowing residents to vote in municipal, state, and federal elections at the same time; and

WHEREAS, historical data reflects voter turnout is significantly higher in November elections than in March municipal elections; and

WHEREAS, the consolidation of municipal elections with the November state and federal elections is expected to reduce the City's election expenses; and

WHEREAS, the City Commission of the City of Pembroke Pines desires that its Charter be amended to change the date for the City's elections to be in November of even numbered years, on the date authorized by the laws governing municipal elections in Broward County; and

WHEREAS, in order to implement the change in election dates, and, to maintain staggered terms for the City's elected Mayor and Commissioners, it is necessary to extend the current terms for Mayor, District 2, and District 3 Commissioners to November 2028, and for District 1 and District 4 Commissioners to November 2030, resulting in an additional 8 months in office for current elected officials; and

WHEREAS, the City Commission deems the proposed amendments to the City Charter, as detailed herein, to be in the best interests of the citizens and residents of the City.

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NOW, THEREFORE, BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, THAT:

SECTION 1. The foregoing "WHEREAS" clauses are hereby ratified and confirmed as being true and correct and are hereby made a specific part of this Ordinance upon adoption hereof.

SECTION 2. Article I, entitled "CREATION AND POWERS"," shall be revised by amending Section 1.10(p) entitled "DEFINITIONS" of the Charter of the City of Pembroke Pines, as follow:

SECTION 1.10 DEFINITIONS.

Definitions as used in this Charter:

...

(p) ***Municipal general election*** means the City Election held on the first Tuesday after the first Monday in November of each even-numbered year. ~~on the second Tuesday of March in every even numbered year.~~

SECTION 3. Article III, entitled "LEGISLATURE"," shall be revised by amending Section 3.02 "COMMISSION MEMBERS," Section 3.05 "MAYOR," as follows:

SECTION 3.02 COMMISSION MEMBERS.

(a) *Composition:* There shall be a City Commission composed of five (5) members: one Mayor and four (4) commission members. Each commission member shall be elected from one of the four (4) districts within the city.

(b) *Regular elections:* The regular election of the City Commission members shall be held on the first Tuesday after the first Monday in November of each even-numbered year ~~second (2nd) Tuesday of March in~~, in the manner provided in this Charter and shall be for four (4) year terms. Regular elections for the Mayor and Commission members representing District 2 and District 3 shall be held in 2028~~1996~~ and every four years thereafter. Regular elections for Commission members representing District 1 and District 4 shall be held in 2030~~1998~~ and every four (4) years thereafter.

...

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SECTION 3.05 MAYOR.

The election for Mayor shall be held on the first Tuesday after the first Monday in November of each ~~second (2nd) Tuesday of March in~~ even numbered years and beginning March, 1984, the Mayor's term shall be for a four (4) year term. The Mayor shall preside at meetings of the Commission, shall be recognized by the Governor for the purposes of military law, for serving of process, execution of contract, deeds, and other documents, and is the City official designated to represent the City in all agreements with other governmental entities, but shall have no administrative duties except as required to carry out responsibility herein. The Mayor shall be a member of the City Commission, shall vote and have the right to debate on all issues coming before the Commission. He shall have the duties, powers, privileges and obligations possessed and imposed on a City Commission member.

(a) In the event of the death, resignation, or removal of the Mayor, the Vice Mayor shall vacate the office of Commission member and shall serve as interim Mayor until a successor is determined in accordance with the provisions of Section 3.11 of the City's Charter.

SECTION 4. Article III, entitled "LEGISLATURE"," shall be revised by amending Section 3.06 "VICE-MAYOR" as follows:

SECTION 3.06 VICE MAYOR.

The City Commission, at the first regularly scheduled meeting in ~~April~~ December of each year, shall elect, by majority vote, the Vice Mayor. The Vice Mayor shall have the privileges, powers and duties of the Mayor in the Mayor's absence or disability.

A vacancy on the Commission created by the death, resignation, removal or the elevation of the Vice Mayor to Mayor shall be filled in accordance with the provisions of Section 3.11 of the City's Charter.

SECTION 5. The current terms for the Mayor and Commissioners in District 2 and 3 shall be extended until the November 2028 general election, and Commissioners in District 1 and 4 until the November 2030 general election, resulting in an additional 8 months in office, to provide for the orderly transition of office to accommodate changes in election dates.

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SECTION 6. The Ballot Title shall be as follows:

CHANGING DATE OF COMMISSION ELECTION, EXTENDING CURRENT TERMS, SELECTION OF VICE-MAYOR

SECTION 7. The following question shall be placed on the ballot for consideration by the qualified electors of the City of Pembroke Pines, Florida, at the November 2026 General Election in Broward County, Florida and shall read as follows:

The current City Charter provides the mayor and commissioners with four-year terms, City elections in March of even numbered years, and the selection of the vice-mayor each April. Should the Charter be amended to change the election of the mayor and commissioners to November in even numbered years, with current terms extended 8 months to effectuate such changes as required by law, and to change the selection of vice-mayor to each December?

YES ☐ NO ☐

SECTION 8. Advertisement. The City Clerk of the City of Pembroke Pines is hereby authorized and directed to advertise the referendum election contemplated herein all in accordance with the Code of Ordinances of the City of Pembroke Pines, Florida, as well as the State of Florida Election Code and to coordinate with the Broward County Supervisor of Elections office the submittal of this Ordinance to referendum to be voted on at the November 3, 2026 Election.

SECTION 9. Codification. It is the intention of the City Commission of the City of Pembroke Pines that the provisions of this Ordinance shall become and be made a part of the Code of Ordinances of the City of Pembroke Pines, Florida, and that the Sections of this Ordinance may be renumbered, re-lettered and the word "Ordinance" may be changed to "Section," "Article," or such other word or phrase in order to accomplish such intention if the question set forth above in Section 7 is approved by the majority of votes cast by the electorate on at the Special Election to be conducted with the November 3, 2026, General Election.

SECTION 10. Conflicts. All Ordinances or parts of Ordinances, Resolutions, or parts of Resolutions in conflict herewith, be and the same are hereby repealed to the extent of such conflict.

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SECTION 11. Severability. If any clause, section, or other part of this Ordinance shall be held by any court of competent jurisdiction to be unconstitutional or invalid, such unconstitutional or invalid part shall be considered as eliminated and in no way effecting the validity of the other provisions of this Ordinance.

SECTION 12. Effective Date. This Ordinance shall take effect immediately upon adoption by the City Commission and signature by the Mayor and shall be submitted to referendum as set forth herein.

PASSED AND ADOPTED BY THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, ON THE FIRST READING, THIS 15TH DAY OF APRIL, 2026.

PASSED ADOPTED BY THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, ON THE SECOND AND FINAL READING, THIS 5TH DAY OF AUGUST, 2026.

CITY OF PEMBROKE PINES, FLORIDA

By: _____
MAYOR ANGELO CASTILLO

ATTEST:

_____
GABRIEL FERNANDEZ, CITY CLERK

APPROVED AS TO FORM:

_____ 3/6/26
OFFICE OF THE CITY ATTORNEY

CASTILLO	AYE
HERNANDEZ	AYE
GOOD	AYE
RODRIGUEZ	AYE
SCHWARTZ	AYE

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City of Pembroke Pines, FL

601 City Center Way
Pembroke Pines, FL
33025
www.ppines.com

Agenda Request Form

Agenda Number: 15.

File ID:	2026-02	**Type:** Ordinance	**Status:** Passed
Version:	2	**Agenda Section:**	**In Control:** City Commission
			File Created: 04/06/2026
Short Title:	Election Date Charter Referendum Ordinance		**Final Action:** 08/05/2026

Title: MOTION TO PASS PROPOSED ORDINANCE NO. 2026-02 ON SECOND AND FINAL READING.

PROPOSED ORDINANCE NO. 2026-02 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA, SUBMITTING TO REFERENDUM AMENDMENTS TO THE CHARTER OF THE CITY OF PEMBROKE PINES AMENDING ARTICLE I ENTITLED "CREATION AND POWERS", AND IN PARTICULAR AMENDING SECTION 1.10 "DEFINITIONS" TO CHANGE MUNICIPAL GENERAL ELECTION'S DEFINITION TO THE CITY ELECTION HELD IN NOVEMBER OF EVEN NUMBERED YEARS; AMENDING ARTICLE III, ENTITLED "LEGISLATURE," AND IN PARTICULAR AMENDING SECTION 3.02 "COMMISSION MEMBERS," SECTION 3.05 "MAYOR," TO CHANGE THE ELECTION DATE IN THE CITY TO OCCUR IN NOVEMBER OF EVEN NUMBERED YEARS, AMENDING ARTICLE III, ENTITLED "LEGISLATURE", SECTION 3.06 "VICE MAYOR" TO CHANGE THE DATE FOR THE CITY'S VICE MAYOR TO BE ELECTED ANNUALLY BY THE CITY COMMISSION AT THE FIRST MEETING IN DECEMBER, PURSUANT TO CHAPTER 75-350, LAWS OF FLORIDA; AS AMENDED; PROVIDING FOR EXTENSIONS IN THE CURRENT TERMS FOR THE MAYOR AND COMMISSIONERS IN DISTRICTS 2 AND 3 TO EXTEND UNTIL THE NOVEMBER 2028 ELECTION AND FOR COMMISSIONERS IN DISTRICTS 1 AND 4 TO EXTEND UNTIL THE NOVEMBER 2030 ELECTION, PURSUANT TO SECTION 5, CHAPTER 75-350, LAWS OF FLORIDA, AS AMENDED; PROVIDING THAT THIS ORDINANCE, WHEN ADOPTED, SHALL BE SUBMITTED TO THE QUALIFIED ELECTORS OF THE CITY OF PEMBROKE PINES ON THE NOVEMBER 2026 GENERAL

ELECTION BALLOT, AND IT SHALL BECOME EFFECTIVE AS PROVIDED BY LAW; PROVIDING FOR THE ADVERTISING OF THE REFERENDUM ELECTION IN ACCORDANCE WITH THE CODE OF ORDINANCES AND THE CHARTER OF THE CITY OF PEMBROKE PINES, AS WELL AS THE STATE OF FLORIDA ELECTION CODE; PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; AND PROVIDING FOR AN EFFECTIVE DATE.

***Agenda Date:** 08/05/2026 **Enactment Date:** 08/05/2026

Agenda Number: 15. **Enactment Number:** 2058

Internal Notes:

Attachments: 1. ORD 2026-02 Election Date Referendum 4905-9736-2077 4, 2. Business Impact Estimate Form - Proposed Ordinance No. 2026-02, 3. Pembroke Pines 2026 Municipal Election Agreement

Related Files:

1	City Commission	04/15/2026	pass on First Reading	Pass

Action Text: A motion was made by Vice Mayor Hernandez, seconded by Commissioner Rodriguez, to pass Proposed Ordinance No. 2026-02 on First Reading . The motion carried by the following vote:

Aye: - 5 Mayor Castillo, Vice Mayor Hernandez, Commissioner Good Jr., Commissioner Rodriguez, and Commissioner Schwartz

Nay: - 0

1	City Commission	04/15/2026	approve	Pass

Action Text: A motion was made by Commissioner Schwartz, seconded by Commissioner Rodriguez, to approve holding no fewer than one town hall meeting within each Commission District.

Following discussion, Commissioner Rodriguez amended the motion to clarify that the meetings would be held at locations within each district and could be citywide. The motion carried by the following vote:

Aye: - 5 Mayor Castillo, Vice Mayor Hernandez, Commissioner Good Jr., Commissioner Rodriguez, and Commissioner Schwartz

Nay: - 0

2	City Commission	08/05/2026	adopt on Second and Final Reading	Pass

Action Text: A motion was made by Vice Mayor Hernandez, seconded by Commissioner Rodriguez, to adopt Proposed Ordinance No. 2026-02 on Second and Final Reading. The motion carried by the following vote:

Aye: - 5 Mayor Castillo, Vice Mayor Hernandez, Commissioner Good Jr., Commissioner Rodriguez, and Commissioner Schwartz

Nay: - 0

SUMMARY EXPLANATION AND BACKGROUND:

1. Chapter 166, Florida Statutes, as amended, provides for a methodology of Charter amendments supplementary to and not in conflict with the Charter of the City of Pembroke

Pines, Florida.

2. Chapter 166, Florida Statutes, as amended, provides that such an amendment may be submitted to a referendum vote by the City Commission of the City of Pembroke Pines, Florida, in an ordinance format.

3. The City Commission has held a public hearing in accordance with Florida law.

4. Section 100.3605, Florida Statutes, as amended, provides that municipalities may change the date of their elections and provide for the orderly transition of office to accommodate changes.

5. By virtue of special acts governing municipal elections in Broward County (Chapter 75-350, Laws of Florida, as modified by Chapters 2004-443, 2005-318, and 2012-253, Laws of Florida (collectively, the "Special Act")), the City of Pembroke Pines and most municipalities in Broward County are required to hold general elections for the elective offices of the municipality on the second Tuesday in March.

6. The present City Charter provides that there shall be a general election in the City on the second Tuesday of March of even numbered years, unless changed by law.

7. The Special Act was amended by Chapter 2004-443, Laws of Florida, to allow municipalities in Broward County to move their elections to November, in even numbered years, provided that any change in election date will not be effective until at least 18 months after the approval of the ordinance by the municipality's governing body.

8. The City Commission of the City of Pembroke Pines finds that aligning municipal elections with the November general election may increase voter participation by allowing residents to vote in municipal, state, and federal elections at the same time.

9. Historical data reflects voter turnout is significantly higher in November elections than in March municipal elections.

10. The consolidation of municipal elections with the November state and federal elections is expected to reduce the City's election expenses.

11. The City Commission of the City of Pembroke Pines desires that its Charter be amended to change the date for the City's elections to be in November of even numbered years, on the date authorized by the laws governing municipal elections in Broward County.

12. In order to implement the change in election dates, and, to maintain staggered terms for the City's elected Mayor and Commissioners, it is necessary to extend the current terms for Mayor, District 2, and District 3 Commissioners to November 2028, and for District 1 and District 4 Commissioners to November 2030, resulting in an additional 8 months in office for current elected officials.

13. The City Commission deems the proposed amendments to the City Charter, as detailed herein, to be in the best interests of the citizens and residents of the City.

FINANCIAL IMPACT DETAIL:

a) **Initial Cost:** Estimated cost $345,209.49.
b) **Amount budgeted for this item in Account No:** Funds would come from account # 001-519-1001-531500-0000-000-0000 (Professional Svc Other) for the 2026-2027 FY Budget.
c) **Source of funding for difference, if not fully budgeted:** Not Applicable.
d) **5 year projection of the operational cost of the project** Not Applicable.
e) **Detail of additional staff requirements:** Not Applicable.

FEASIBILITY REVIEW:
A feasibility review is required for the award, renewal and/or expiration of all function sourcing contracts. This analysis is to determine the financial effectiveness of function sourcing services.

a) **Was a Feasibility Review/Cost Analysis of Out-Sourcing vs. In-House Labor Conducted for this service?** Not Applicable.
b) **If Yes, what is the total cost or total savings of utilizing Out-Sourcing vs. In-House Labor for this service?** Not Applicable.

BUSINESS IMPACT ESTIMATE:
Pursuant to Section 166.041, F.S., a Business Impact Estimate must be prepared for certain ordinances that impact the operations of local businesses.

a) **Is a Business Impact Estimate (BIE) Form attached to this Ordinance?** Yes.
b) **Is this Ordinance exempt from requiring an Business Impact Estimate (BIE)?** No.